

23NWCV03507 23NWCV03507

County: los-angeles

Division: Civil Law and Motion

Department: L

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Case Number: 23NWCV03507 Hearing Date: June 23, 2026 Dept: L

Plaintiffs Fortino Santana and

Maria Santana's Motion for Relief from Mistake, Inadvertence, Surprise, or

Excusable Neglect, or Alternatively, Motion For Reconsideration is GRANTED, in

part.

The Court-ordered dismissal

entered on January 22, 2026 is VACATED.

Plaintiffs are ordered to file

the proposed First Amended Complaint within 5 days of this order.

A Case Management Conference

is set for October 8, 2026 at 8:30 a.m. in Dept. L.

Plaintiffs to give notice.

Background

This is a lemon law action. On

October 31, 2023, Plaintiffs Fortino Santana and Maria Santana ("Plaintiffs")

filed this action against Defendants Ford Motor Company ("Ford"), Cerritos

Ford, Inc., doing business as Norm Reeves Ford Superstore ("Norm Reeves"),

(collectively, "Defendants") and Does 1 to 10. The Complaint alleges the

following causes of action: 1) Violation of Subdivision (D) of Civil Code

Section 1793.2, 2) Violation of Subdivision (B) of Civil Code Section 1793.2,

3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2, 4) Breach of

Implied Warranty of Merchantability, 5) Repair Fraudulent Inducement –

Concealment, and 6) Negligent.

On December 1, 2023, Ford filed

its answer.

On December 26, 2023, Norm Reeves

filed its answer.

On December 11, 2025, the Court

granted Defendants' Motion for Judgment on the Pleadings with 30 days' leave to

amend. (12/11/2 Minute Order.)

On January 15, 2026, Defendants

filed a Motion and Enter Judgment in Favor of Defendants CCP Section 438(h)(4)(C)

and (i)(1)(B) ("Motion to Enter Judgment").

On January 22, 2026, the Court

granted Defendants' Ex Parte Application to Advance the Hearing Date on Motion

to Enter Judgment Following Plaintiffs' Failure to Amend their Complaint.

(1/22/26 Minute Order.) The Court advanced the Motion to Enter Judgment to that

date and entered judgment in favor of Defendants. (1/22/26 Order.)

Plaintiffs now move for Code of

Civil Procedure section 473, subdivision (b) relief from the dismissal, or

alternatively, for reconsideration under Code of Civil Procedure section 1008.

Legal Standard

i.

CCP § 473(b) Relief

Code of Civil Procedure section

473, subdivision (b) provides for discretionary and mandatory relief for

mistake, inadvertence, surprise, or excusable neglect.

Discretionary relief is available

to "relieve a party or his or her legal representative from a judgment,

dismissal, order, or other proceeding taken against him or her through his or

her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., §

473, subd. (b).)

Mandatory relief is available

"whenever an application for relief is made no more than six months after entry

of judgment, is in proper form, and is accompanied by an attorney's sworn

affidavit attesting to his or her mistake, inadvertence, surprise, or neglect...unless

the court finds that the default or dismissal was not in fact caused by the

attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., §

473, subd. (b).)

ii.

CCP §1008 Reconsideration

A motion for reconsideration

under Section 1008 requires that the moving party present new or different

facts that were not previously considered by the Court. (New York Times Co.

v. Superior Court (2005) 135 Cal.App.4th 206, 212-13.) However, the burden

under Section 1008 "is comparable to that of a party seeking a new trial on the

ground of newly discovered evidence: the information must be such that the

moving party could not, with reasonable diligence, have discovered or produced

it at the trial." (Id.; Even Zohar Construction & Remodeling,

Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 833 [finding that

Section 1008 imposes the special requirement of having to not only show new or

different facts, circumstances, or law, but also to "show diligence with a

satisfactory explanation for not presenting the new or different information

earlier..."].)

Discussion

i.

CCP § 473(b) Relief

Plaintiffs argue that

Plaintiffs' failure to file an amended complaint following the sustaining of

Defendants' Demurrer was due to counsel's mistake, inadvertence, surprise, or

excusable neglect. Specifically, due to the volume cases and/or the format of

the calendaring application, Plaintiffs' counsel failed to see the calendared

deadline to file the amended complaint for this case. (Lister Decl., ¶¶ 3-7,

Exh. A.) Plaintiffs' counsel was only made aware of the missed deadline when

Defendants filed the Ex Parte Application requesting dismissal on January 21,

2026. (Lister Decl., ¶ 8.) Plaintiffs' counsel promptly prepared an amended

complaint. (Lister Decl., ¶ 8, Exh. B.) Plaintiffs seek relief from the

dismissal based on the discretionary and/or mandatory relief provisions of Code

of Procedure section 473, subdivision (b). Plaintiffs request that the Court

allow the proposed First Amended Complaint to be filed. (Lister Decl., ¶ 8,

Exh. B.)

In opposition, Defendants

argue that neither the discretionary and/or mandatory relief provisions of Code

of Procedure section 473, subdivision (b) applies. Firstly, the mandatory

relief provision does not apply because the dismissal here was not procedurally

equivalent to a default. Second, the discretionary relief provision does not apply because Plaintiffs' counsel's failure to read his assignment calendar is inexcusable neglect. Further, Plaintiffs' counsel lacked diligence in seeking relief.

Specifically, Plaintiffs took no action when Defendants filed the Motion to Enter Judgment on January 15, 2026 and waited until January 30 to seek the instant relief.

In reply, Plaintiffs argue that the mandatory relief provision applies because the January 22, 2026 dismissal was the equivalent of a default. Plaintiffs argue that there was no merits determination on that date—it was determined only that Plaintiffs failed to timely amend the complaint, and dismissal was entered. Plaintiffs cite to *Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1148-49 to argue that a dismissal resulting from an ex parte application after plaintiff had not amended the complaint was equivalent to a default judgment and the mandatory relief provision did not apply. Alternatively, discretionary relief is warranted under totality of the circumstances.

The Court finds that the mandatory relief provision applies here.

Firstly, the Court acknowledges that mandatory relief provision of Code of Procedure section 473,

subdivision (b) applies to “dismissals which are the procedural equivalent of defaults [...]” (Leader v. Health Industries of America, Inc. (2001) 89 Cal.App.4th 603, 618, emphasis in the original, citing Bernasconi Commercial Real Estate v. St. Joseph's Regional Healthcare System (1997) 57 Cal.App.4th 1078, 1082.)

The Court finds that two cases shed light on whether the dismissal in this case is the equivalent of a default judgment such that the mandatory relief provision applies: Leader v. Health Industries of America, Inc. (“Leader”) (2001) 89 Cal.App.4th 603 and Younessi v. Woolf (“Younessi”) (2016) 244 Cal.App.4th 1137.

In the Leader case, the defendants' demurrers were sustained with leave to amend, the plaintiffs failed to file an amended complaint within the time permitted by the trial court. (Leader, *supra*, 89 Cal.App.4th at p. 607.) The plaintiffs moved for relief pursuant to the mandatory relief provision of Code of Procedure section 473, subdivision (b). (Id. at pp. 608-609.) The defendants moved to dismiss the action for failure to timely amend the complaint. (Id. at p. 610.) After a hearing on both motions, the trial court denied the plaintiffs' motion for relief and granted the defendant's motion to dismiss. (Id.

at pp. 610-611.) The Court of Appeal affirmed, concluding the mandatory relief provision does not apply to “discretionary dismissals based on the failure to file an amended complaint after a demurrer has been sustained with leave to amend, [where] the dismissal was entered after a hearing on noticed motions which required the court to evaluate the reasons for delay in determining how to exercise its discretion.” (Id. at p. 620.) The Court of Appeals reasoned that the plaintiffs had the opportunity to oppose the motion to dismiss, which was granted on a noticed hearing. (Id. at p. 621.)

Because the plaintiffs had their “day in court” the dismissal was not the equivalent to a default judgment, and the mandatory relief provision did not apply. (Ibid.)

In contrast, in *Younessi* case, the trial court dismissed the action following the plaintiff’s failure to timely amend the complaint via an ex parte application for entry of dismissal filed by a defendant. (*Younessi*, supra, 244 Cal.App.4th at p. 1141.) The plaintiffs moved to set aside the dismissal pursuant to the discretionary and mandatory relief provisions of Code of Procedure section 473, subdivision (b). (Id. at p. 1142.) The trial court granted the motion for relief. (Ibid.) The Court of Appeal affirmed, reasoning that, unlike in *Leader*, the “dismissal resulted from an order granting [the

defendant's] ex parte application for entry of a dismissal, without any

opposition from plaintiffs that would allow the trial court to evaluate why

they had failed to timely file an amended complaint." (Id. at p. 1148.)

The Court of Appeals found that the dismissal was the equivalent of a default

judgment, and the mandatory relief provision applied. (Id. at pp.

1148-1149.)

The Court finds that the

instant matter is more similar to Younessi than Leader. Here,

Defendants filed a Motion for Entry of Judgment (to dismiss the case), and

subsequently brought an ex parte application to advance that Motion, or

alternatively, to rule on the Motion on the date of the ex parte hearing. The

Court advanced the Motion for Entry of Judgment to that date and granted it,

entering judgment in favor of Defendants. (1/22/26 Order.) Similar to Yousessi,

Plaintiffs here did not have a proper opportunity to oppose the request to

dismiss the action. The Court acknowledges that Plaintiffs' counsel was present

at the ex parte hearing. However, without formal opposition papers, the Court

was not able "to evaluate why [plaintiffs] had failed to timely file an amended

complaint." (See Younessi, *supra*, 244 Cal.App.4th at p. 1148.) Based on

all circumstances, the Court finds that the mandatory relief provision of Code

of Procedure section 473, subdivision (b) applies because the dismissal was the

functional equivalent of a default.

The Court finds that

Plaintiffs' counsel's failure to timely file the amended complaint was due to inexcusable neglect. However, the Court is satisfied that the Declaration of Jacob Lister qualifies as an attorney affidavit of fault to support mandatory relief. The Court finds that Plaintiffs acted diligently in seeking relief—the instant Motion was only filed 15 days after Defendants' Motion for Entry of Judgment was filed and 9 days after Defendants' Ex Parte Application was filed.

The Court finds minimal prejudice to Defendants will result if relief is granted. Further, public policy weighs in favor of granting relief and allowing the case to proceed on the merits. (See *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 ["[B]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default."], superseded on other grounds by *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973.)

Thus, Plaintiffs are entitled to relief from the January 22, 2026 entry of dismissal.

ii.

CCP §1008 Reconsideration

The Court need not discuss

whether the order can be reconsidered where the Court finds that mandatory relief applies.

The Court notes that judge loses

jurisdiction to rule on a motion for reconsideration after entry of judgment,

as is the case here. (See *Marshall v. Webster* (2020) 54 Cal.App.5th 275,

281 ["It is settled law that a motion for reconsideration is ineffectual if it

is filed after entry of judgment."].)

Conclusion

Based on the foregoing, Plaintiffs'

Motion for Relief from Mistake, Inadvertence, Surprise, or Excusable Neglect,

or Alternatively, Motion For Reconsideration is GRANTED, in part.

The Court-ordered dismissal

entered on January 22, 2026 is VACATED.

Plaintiffs are ordered to file

the proposed First Amended Complaint within 5 days of this order.

A Case Management Conference is

set for October 8, 2026 at 8:30 a.m. in Dept. L.